



CHAPTER cxl.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to Castleblayney (Urban) Castleblayney (Rural) the Port of Cork and the Portadown and Banbridge Joint Waterworks District. A.D. 1903.
—
[11th August 1903.]

WHEREAS the Local Government Board for Ireland (hereinafter referred to as “the Local Government Board”) have made the Provisional Orders set forth in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1896 :

41 & 42 Vict. c. 52.
42 & 43 Vict. c. 57.
47 & 48 Vict. c. 77.
52 & 53 Vict. c. 64.
53 & 54 Vict. c. 59.
59 & 60 Vict. c. 54.

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to one of such Orders :

Be it therefore enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The urban district council of Castleblayney shall not under the powers of the Castleblayney Order 1903 hereby confirmed purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or will be subsequently so occupied. Restriction of power to take houses of labouring class.

[Ch. cxl.] *Local Government Board (Ireland)* [3 EDW. 7.]
Provisional Orders Confirmation (No. 5) Act, 1903.

A.D. 1903. The expression “labouring class” means mechanics artizans
— labourers and others working for wages hawkers costermongers
persons not working for wages but working at some trade or
handicraft without employing others except members of their own
families and persons other than domestic servants whose income
does not exceed an average of thirty shillings a week and the
families of any of such persons who may be residing with them.

Short title. **3.** This Act may be cited as the Local Government Board
(Ireland) Provisional Orders Confirmation (No. 5) Act 1903.

S C H E D U L E.

A.D. 1903.

URBAN DISTRICT OF CASTLEBLAYNEY.

Provisional Order to enable the Urban District Council of Castleblayney to put in force the Compulsory Clauses of the Lands Clauses Acts. *Castleblayney (Urban).*

WHEREAS the urban district council of Castleblayney (in this Order referred to as “the district council”) require to purchase and take the lands described in the First Schedule hereto for the purpose of providing a supply of water for their district and the lands described in the Second Schedule hereto for the purpose of improving the sewerage of their district :

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedules hereto and for the purposes aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them. 41 & 42 Viet.
c. 52.
59 & 60 Viet.
c. 54.

2. For the purposes of this Order the expression “land” in the Lands Clauses Acts shall include the lands and premises described in the schedules hereto.

3. The costs and expenses of the district council and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council out of the rate leviable under section 60 of the Towns Improvement (Ireland) Act 1854 as amended by any enactment. 17 & 18 Viet.
c. 103.

4. This Order may be cited as the Castleblayney Order 1903.

[Ch. cxl.] Local Government Board (Ireland) [3 EDW. 7.]
Provisional Orders Confirmation (No. 5) Act, 1903.

A.D. 1903.

Castleblayney
(Urban).

FIRST SCHEDULE.

County of MONAGHAN.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
Parish of DONAGHMOYNE.			
	Part of the townland of Corravoo as follows :—		
1	Water bed and soil of stream -	Irish Land Commission	Peter Lambe.
1A	Ditto - - - -	Ditto - - -	Patrick Woods.
2	Water half bed and soil of stream -	Ditto - - -	Ditto.
3	Ditto - - - -	Ditto - - -	Ditto.
4	Ditto - - - -	Ditto - - -	Patrick Hughes.
5	Ditto - - - -	Ditto - - -	Ditto.
8	Land containing $\frac{1}{2}$ p. - -	Ditto - - -	Bernard McArdle.
10	Land containing 36p. - -	Ditto - - -	Ditto.
11	Land containing 1r. 24p. - -	Ditto - - -	Edwd. McEneaney.
Parish of AGHNAMULLEN.			
	Part of the townland of Cargaghadoo as follows :—		
2	Water half bed and soil of stream -	M. J. Hamilton -	Owen Walshe.
3	Ditto - - - -	Ditto - - -	Patk. McDonnell.
4	Ditto - - - -	Ditto - - -	Ditto.
5	Ditto - - - -	Ditto - - -	Fras. Meegan.
6	Water bed and soil of stream -	Ditto - - -	Ditto.
7	Land containing $\frac{1}{2}$ p. - -	Ditto - - -	Ditto.
Parish of CLONTIBRET.			
	Right to take the water of streams which form portion of supply to the following mills :—		
12	Corn mill in the townland of Rossollus	H. B. Fitzgerald -	Thos. Curley.
12A	Flax mill in the townland of Toome -	M. J. Hamilton - -	Fras. Connolly.
12B	Corn mill in the townland of Toome -	Ditto - - -	Ditto.
	Flax mill in the townland of Dernaglug	Captain G. A. Lucas -	James Keenan.
	Corn mill same townland - -	Ditto - - -	Ditto.
13	Land containing 2a 20p. in the townland of Aunagleve.	Trustees of Lord Hope	Eliza J. Hillis.
Parish of BALLYBAY.			
12B	Corn mill in the townland of Kuappagh	Mrs. Gold.	—

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Provisional Orders Confirmation (No. 5) Act, 1903.

SECOND SCHEDULE.

A.D. 1903.

Castleblayney
(Urban).

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
Parish of MUCKNO.			
1	Field containing 3a. 2r. 6p. in the townland of Drumillard Little.	Trustees of Lord Hope	Thomas Crozier.
2	Field containing 20p. in the townland of Drumillard Big.	Ditto - -	David Boyd.

Given under our seal of office this twenty-fourth day of April
one thousand nine hundred and three.

(L.S.)

(Signed)

H. A. ROBINSON.

WM. L. MICKS.

RURAL DISTRICT OF CASTLEBLAYNEY.

Provisional Order to enable the Council of the Rural District of Castleblayney to put in force the Compulsory Clauses of the Lands Clauses Acts. *Castleblayney (Rural).*

WHEREAS the council of the rural district of Castleblayney (in this Order referred to as "the district council") require to purchase and take the lands and premises described in the First Schedule hereto for the purpose of providing a supply of water for the town of Ballybay in their district and the lands and premises described in the Second Schedule hereto for the purpose of providing a system of sewerage and a receptacle for refuse for the said town of Ballybay :

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

41 & 42 Vict.
c. 52.

1. The district council shall be empowered to put in force with reference to the lands and premises described in the schedules hereto and for the purposes aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

59 & 60 Vict.
c. 54.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedules hereto.

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Provisional Orders Confirmation (No. 5) Act, 1903.

- A.D. 1903. 3. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council and the money required for that purpose shall be supplied by the county council of Monaghan in the manner provided by the Local Government (Ireland) Act 1898 as part of the expenses of the district council.
- 61 & 62 Vict.
c. 37. 4. This Order may be cited as the Castleblayney (Ballybay Town) Order 1903.

FIRST SCHEDULE.

Parish of AGHNAMULLEN County of MONAGHAN.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
Townland of CREEVE.			
21	Right to take from the Creeve Lakes waters forming portion of the supply to the following mills :—		
	Flax mill - - - - -	A. N. Montgomery and Captain Cole.	Thomas Dignam.
	Corn mill - - - - -	Ditto - - - - -	Ditto.
	Flax mill - - - - -	A. N. Montgomery -	A. N. Montgomery.
	Beetling mill - - - - -	Captain Cole - -	E. H. C. Biggar.
	Ditto - - - - -	Miss Cunningham -	Thomas Dignam.
	Corn and flax mill - - - - -	Geo. Reid - - -	Alex. Wilson.
22	Land and bed of Creeve Lakes containing 26p.	A. N. Montgomery -	Terence Bradley.
23	Land containing 1r. - - - - -	Ditto - - - - -	A. N. Montgomery.
1	Right to scour bed of ancient watercourse and repair and maintain banks of same where it runs through the townland of Carnaveagh.	Messrs. Thompson -	Denis Duffy.
2	Right to scour bed of ancient watercourse and repair and maintain banks of same where it runs through the townland of Carrickatee.	A. R. Montgomery -	Catherine Carroll.
3	Ditto - - - - -	Ditto.	—
4 5 6 7	Right to scour half bed of ancient watercourse and repair and maintain banks of same where it runs through the townland of Carrickatee.	Ditto - - - - -	Denis Duffy.
8	Ditto - - - - -	Ditto - - - - -	Patrick Duffy.
4	Right to scour half bed of ancient watercourse and repair and maintain bank of same where it runs through the townland of Carrickaveilty.	Messrs. Crofton -	James King.
5	Ditto - - - - -	Ditto - - - - -	Bridget Lambe.

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Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.	A.D. 1903. Castleblayney (Rural).
6	Right to scour half bed of ancient watercourse and repair and maintain bank of same where it runs through the townland of Carrickaveilty.	Messrs. Crofton	John Duffy.	
7	Ditto - - - -	Ditto - - -	Ditto.	
8	Ditto - - - -	Ditto - - -	Ditto.	
9	Right to scour bed of ancient watercourse and repair and maintain banks of same where it runs through the townland of Carrickaveilty.	Ditto - - -	Ditto.	
10	Ditto - - - -	Ditto - - -	Margaret Jane Somerville.	
11	Ditto - - - -	Ditto - - -	Wm. McCabe.	
12	Ditto - - - -	Ditto - - -	John Duffy Jr.	
13	Ditto - - - -	Ditto - - -	John Somerville.	
14A	Ditto - - - -	Ditto - - -	Ditto.	
15	Ditto - - - -	Ditto - - -	John Bethel.	
15A	Right to scour bed of ancient watercourse and maintain banks of same where it flows through the townland of Kilkit.	Irish Land Commission	Wm. McCabe.	
16	Right to scour bed of ancient watercourse and repair and maintain banks of same where it flows through the townland of Carrickaveilty.	Messrs. Crofton	Edward McCabe.	
17	Ditto - - - -	Ditto - - -	John Duffy Jr.	
18	Ditto - - - -	Ditto - - -	Thomas Somerville.	
19A	Ditto - - - -	Ditto - - -	John Hughes.	
20	Ditto - - - -	Ditto - - -	Hugh Carroll.	
Townland of CORWILLIN.				
21	Right to take from the Creeve Lakes waters forming portion of the supply to the following mills: -			
	Corn mill - - - -	Sidney Jackson - -	Sidney Jackson.	
	Ditto - - - -	Ditto - - -	Ditto.	
Townland of DRUMFALDRA.				
	Corn and flax mill - - - -	Samuel Brown - -	Samuel Brown.	
	Corn mill - - - -	Ditto - - -	Ditto.	
Townland of BOWELK.				
	Corn mill - - - -	Mrs. F. W. Jackson -	Edward McMahon.	
Townland of CARRICKAVEILTY.				
14	Land containing 5p. - - - -	Messrs. Crofton	John Somerville.	
16A	Land containing 1½p. - - - -	Ditto - - -	Edward McCabe.	
19	Land containing 1¾p. - - - -	Ditto - - -	John Hughes.	

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A.D. 1903.

Castleblayney
(Rural).

SECOND SCHEDULE.

Parish of BALLYBAY.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Occupiers.
Townland of CORNAMUCKLAGLASS.			
1	Private road to be raised to level of Meeting House Lane and left open for use of occupiers of Meadows to which it leads containing 18½p.	R. C. Leslie -	Thos. Cuning. Mrs. Somerville.
2	Field containing 2r. 7¼p. - -	Ditto - -	Francis Boyle. Thomas Cuning.
3	Field containing 2a. 23¼p. - -	Ditto - -	James McMurray.
Townland of CORKEERAN.			
1	Plot of land containing 32p. - -	R. C. Leslie - -	Mrs. Fitzpatrick.

Given under our seal of office this twenty-fourth day of April
one thousand nine hundred and three.

(L.S.)

(Signed)

H. A. ROBINSON.
Wm. L. MICKS.

CORK PORT SANITARY AUTHORITY.

Cork.

Provisional Order for constituting a Port Sanitary Authority.

WHEREAS the Port of Cork is a port established for the purposes of the laws relating to the customs of the United Kingdom :

And whereas the county borough of Cork is an urban sanitary district and forms part of or abuts upon the part of the said port herein-after described and the Lord Mayor Aldermen and Burgesses of the said county borough acting by the council (in this Order referred to as the "corporation of Cork") are a sanitary authority of the said part of the said port :

And whereas each of the county districts mentioned in the first column of the schedule hereto is a sanitary district and forms part of or abuts upon the said part of the said port and each of the councils of the said districts is a sanitary authority of the said part of the said port :

And whereas the council of the rural district of Cork have presented a petition in pursuance of the Public Health (Ireland) Acts 1878 to 1896 to the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") praying that a port sanitary authority for the said port may be constituted :

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And whereas after inquiry it appears proper to the Local Government Board to permanently constitute a port sanitary authority for part of the said port by forming a joint board consisting of representative members of all of the said sanitary authorities (in this Order referred to as "the component authorities"):

A.D. 1903.
Cork.

It is ordered by the Local Government Board as follows:—

1. This Order shall come into operation from and after the date of the Act confirming the same (in this Order referred to as "the appointed day").

Commence-
ment of Order.

2. A joint board shall be formed as herein-after mentioned and shall be permanently constituted the port sanitary authority for the part of the said port of Cork herein-after described.

Formation of
joint board.

3. The joint board shall be a body corporate by the name of the Cork Port Sanitary Authority and shall consist of twenty members to be elected by the respective component authorities from among the persons who at the time of such election are members of their own bodies and the said authorities shall elect respectively the number of members specified in the second column of the schedule hereto.

Constitution of
joint board.

4. The first election of members of the joint board shall take place at a meeting duly convened of each of the component authorities held within six weeks after the appointed day or within such further time as the Local Government Board may allow.

First election
of members of
joint board.

5. The clerk to each of the component authorities shall notify the Local Government Board in writing within seven days after such first election has taken place the name address and occupation of each person elected by such authority as a member of the joint board.

Notification
of members
elected.

6. The several members of the joint board shall go out of office and their successors shall come into office on the first day of April in each year provided that the members of the joint board elected at the first election shall continue in office until the first day of April one thousand nine hundred and five. The election in each year of members for the ensuing period of office by any component authority shall take place at a meeting of such authority held within the month next preceding such date or at such meeting as the Local Government Board may appoint.

Date of com-
mencement of
office.

7. Every member of the joint board shall continue in office until the day on which the several members of the joint board go out of office as provided by Article six of this Order or until he dies or resigns or becomes disqualified for holding office or vacates his seat for absence.

Duration of
office.

8. Casual vacancies among the members of the joint board shall be filled as follows. The component authority by which the member causing the vacancy was elected shall at a meeting to be held within one month after such vacancy has taken place or within such further period as the Local Government Board may direct (of which meeting seven days' notice in writing shall be given by the clerk to such authority to each member of such

Casual
vacancies.

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- A.D. 1903. authority) elect a member of their body to fill such vacancy and the clerk to such authority shall forthwith notify in writing the clerk to the joint board the name address and occupation of the person elected to fill such vacancy.
- Cork.*
- Disqualifica- 9. Such of the provisions of Article twelve of the schedule to the Local tions. Government (Application of Enactments) Order 1898 as relate to members of district councils shall with the necessary modifications apply to members of the joint board. •
- Meetings of 10.—(1) The time and place of holding the first meeting of the joint joint board. board shall be fixed by the Local Government Board.
- (2) An annual meeting of the joint board shall take place in every year except the year One thousand nine hundred and four on the first Saturday following the first day of April or if that day be Saturday then on that day.
- (3) After the said first meeting and after the annual meeting the subsequent ordinary meetings of the joint board shall be held at such times and places as the joint board may appoint Provided that an extraordinary meeting shall be summoned by the clerk to the joint board when a requisition for that purpose is addressed to him by the chairman or any three members of the joint board Such requisition shall be in writing and no business other than that specified in the requisition shall be transacted at such extraordinary meeting.
- (4) Notices of all meetings of the joint board shall be delivered or sent by post so as to reach the last known place of abode or business of each member of the joint board in the case of an ordinary meeting two clear days before the day of such meeting and in the case of an extraordinary meeting one clear day before the day of such meeting or in either case at such earlier time as the joint board may direct.
- Chairman and 11. At the said first meeting and at the annual meeting the members of the vice-chairman. joint board shall appoint one of their members chairman and another member vice-chairman of the joint board Such chairman and vice-chairman shall hold office until the next annual appointment of chairman or vice-chairman unless he has previously died resigned or otherwise ceased to be a member of the joint board In the event of the death or resignation of such chairman or vice-chairman or of his otherwise ceasing to be a member of the joint board the joint board at the next meeting after such vacancy has taken place shall appoint another member of the joint board to fill the vacancy.
- Conduct of 12. At all meetings of the joint board the chairman or in his absence the business at meetings. vice-chairman shall preside and if at the commencement of the meeting the chairman and vice-chairman are both absent the members of the board who are present shall elect one of their number to preside at such meeting until the chairman or vice-chairman takes the chair.
- Decision of 13. Every question at any meeting of the joint board shall be determined questions at meetings. by a majority of the votes of the members present and in any case in which there is an equality of votes on any question that question shall be deemed to be lost Provided that where there is an equality of votes at the election of

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chairman or vice-chairman or the chairman of a meeting it shall be determined by lot which of the persons receiving an equal number of votes shall be chairman or vice-chairman or chairman of the meeting as the case may be. A.D. 1903.
Cork.

14. The chairman presiding at any meeting of the joint board shall be entitled to give one vote on each question submitted to the joint board but he shall not under any circumstances be entitled to an additional or casting vote. Vote of chairman.

15. At all meetings of the joint board five members shall constitute a quorum. Quorum.

16. The joint board shall appoint a medical officer of health and such other sanitary officers as the Local Government Board may direct with such salary in each case as the joint board may determine with the approval of the Local Government Board and the Local Government Board shall assign to the medical officer of health and to the other sanitary officers (if any) their respective duties and functions. The Local Government Board shall have the same powers with regard to the qualifications appointment duties regulation of salary and tenure of office of every sanitary officer as they have in the case of the medical officer of a dispensary district. Sanitary officers.

17. The joint board may provide and maintain such offices as may be necessary for transacting their business or may pay such sums as they think proper for the use of offices for such purpose. They may also in addition to the officers mentioned in the last preceding article appoint and employ a clerk and such other officers and servants as may be necessary and proper for the efficient transaction of their business and may pay such clerk officers and servants such reasonable remuneration salaries and wages as they may think proper and every clerk officer and servant so appointed or employed in pursuance of this article shall be removable by the joint board at their pleasure. Offices clerk &c.

18. The jurisdiction of the said port sanitary authority shall extend to the whole of that part of the customs port of Cork which lies between Power Head and Cork Head in the county of Cork together with the waters of the said port of Cork within such limits and all docks basins harbours creeks rivers channels bays and streams within the aforesaid limits and the places for the time being appointed as the customs boarding station or stations for such part of the said port and the places for the time being appointed for the mooring or anchoring of ships for such part of the said port under any regulations for the prevention of the spread of diseases issued under the authority of the statutes in that behalf. Limits of jurisdiction.

19. For the purposes of this Order the sections specified in this article of the Public Health (Ireland) Act 1878 and of the Public Health (Ireland) Act 1896 and also the Infectious Disease (Prevention) Act 1890 shall apply and the port sanitary authority shall have exercise perform and be subject to all the powers rights duties capacities liabilities and obligations Assignment of powers &c.
41 & 42 Vict.
c. 52.
59 & 60 Vict.
c. 54.
53 & 54 Vict.
c. 84.

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A.D. 1903. of a sanitary authority or district council under the said sections and under
 the said Act of 1890 so far as those sections and the said Act of 1890
 are applicable to the waters within the jurisdiction of the port sanitary
 authority or to ships coming or being within the said jurisdiction or to
 persons upon any such ship or brought by any such ship within the said
 jurisdiction or to goods or things upon any such ship or to goods or things
 landed from any such ship and being within the said jurisdiction which in the
 opinion of the port sanitary authority or their medical officer of health
 require to be disinfected or destroyed namely: -

Cork.

41 & 42 Vict.
 c. 52.

Of the Public Health (Ireland) Act 1878:—

Section 13 (except so far as it provides for there being ex-officio members)
 relating to joint boards.

Sections 107 to 127 relating to nuisances.

Sections 137 to 145 and section 148 relating to infectious diseases.

Sections 149 150 (as amended by the Local Government (Ireland) Act
 1898 and adapted by the Local Government (Adaptation of Irish
 Enactments) Order 1899) 151 (as adapted by the Local Government
 (Adaptation of Irish Enactments) Order 1899) 152 153 (as adapted by
 the Local Government (Adaptation of Irish Enactments) Order 1899)
 154 to 156 relating to the prevention of the spread of infectious
 diseases and hospitals.

Sections 157 and 158 relating to mortuaries.

Sections 200 and 201 relating to contracts.

Sections 202 203 (as amended by the Public Health (Ireland) Act 1896)
 and 204 relating to purchase of lands.

Section 208 relating to powers of inspectors of the Local Government
 Board.

Section 215 relating to costs of Provisional Orders.

Sections 216 217 (as amended by the Public Health (Ireland) Act 1896)
 and 218 relating to arbitration.

Sections 219 to 223 and section 225 relating to byelaws.

Sections 237 to 243 relating to borrowing.

Sections 249 to 262 and sections 264 to 269 relating to legal proceedings
 and notices.

Sections 271 to 274 relating to miscellaneous provisions.

Sections 281 282 and 283 being saving clauses.

59 & 60 Vict.
 c. 54.

Of the Public Health (Ireland) Act 1896:—

Section 2 relating to works in adjoining districts.

Section 15 relating to defaulting authorities.

Provided as follows:—

(1) Nothing in this Order contained shall affect the powers of any
 sanitary authority except as to such waters ships persons and things
 as above mentioned:

(2) In this article the term “ship” includes vessel or boat.

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20.—(1) Unless and until the Local Government Board otherwise direct by order under seal all expenses incurred by the port sanitary authority in the execution of this Order shall be defrayed out of a common fund to be contributed by the component authorities in the proportions specified in the third column of the schedule hereto.

A.D. 1903.

Cork.

Expenses of
joint board.

(2) The contribution of the county borough of Cork and of the urban district of Queenstown shall be defrayed out of any rate applicable by the council of that borough or district to defraying the expenses incurred by them in the execution of the Public Health (Ireland) Acts 1878 to 1896.

(3) The contribution of each of the rural districts shall be included by the council of the district in their annual estimate and in their demand to be forwarded to the council of the county of Cork in accordance with section fifty-one of the Local Government (Ireland) Act 1898.

21. The port sanitary authority for the purpose of obtaining payment of sums to be contributed as aforesaid by the component authorities shall have all the powers conferred in that behalf by section 13 of the Public Health (Ireland) Act 1896 on a port sanitary authority constituted temporarily but the council of the urban district of Middleton shall be exempt from contributing to any expenses incurred by the port sanitary authority.

Payment of
contributions.
59 & 60 Vict.
c. 54.

22. The accounts of the port sanitary authority shall at all reasonable times be open without payment to inspection and transcription by any member of any component authority or by any officer of any component authority authorised by them for that purpose.

Inspection of
accounts.

23. The accounts of the port sanitary authority shall be made up in such form and to such day or days in each year as may be appointed by the Local Government Board and shall be audited by such auditor of the said Board as they may appoint for the purpose. The auditor so appointed shall with respect to the accounts of the port sanitary authority have the like powers and be subject to the like obligations in every respect as in case of an audit under the Local Government (Ireland) Act 1871 as amended by any enactment and any person aggrieved by the decision of the auditor shall have the like rights and remedies as in the case of such last-mentioned audit. The proportion of the salary of the auditor to be charged in respect of the audit of the accounts of the port sanitary authority shall be ascertained and determined by the Local Government Board and shall be paid accordingly to such bank or person as that Board may direct.

Audit.

24. A copy of the auditor's report and of the abstract of the accounts of the port sanitary authority when duly audited shall be sent by the port sanitary authority to each of the component authorities.

Auditor's report
to be sent to
component
authorities.

25.—(1) The Queenstown Intercepting Hospital and all appurtenances thereof situate in the rural district of Cork shall pass to and vest in the port sanitary authority and shall be held by that authority for the purposes of this Order.

Vesting of
Queenstown
Hospital in
port sanitary
authority.

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A.D. 1903.
Cork.

(2) The port sanitary authority shall defray the outstanding balance of the loan made by the Commissioners of Public Works in Ireland for the purposes of the said hospital amounting to 714*l.* and all interest now due or hereafter to become due in respect thereof.

(3) The liabilities incurred in respect of the said hospital between the 1st day of October 1900 and the appointed day to an extent not exceeding in the whole the sum of 575*l.* 15*s.* shall be defrayed by the council of the county borough of Cork the council of the rural district of Cork and the council of the urban district of Queenstown in proportion to the rateable value of their respective districts and shall be paid out of any rate or fund applicable to the purposes of the Public Health (Ireland) Act 1878.

Settlement of
differences.

26. If at any time any difference arises between the port sanitary authority on the one hand and any component authority on the other hand or between any two or more component authorities respecting any matter arising out of the provisions of this Order the same shall be referred to and be settled by arbitration in the manner provided by the Public Health (Ireland) Acts 1878 to 1896.

Costs of Order.

27. All costs and expenses incurred by the Local Government Board in relation to the application for preparation making and confirmation of this Order shall be deemed to be and be defrayed as expenses incurred by the port sanitary authority in the execution of this Order and shall be paid by the port sanitary authority to the Local Government Board.

Short title of
Order.

28. This Order may be cited as the Cork Port Sanitary Order 1903.

S C H E D U L E.

Sanitary Districts.	Number of Representatives on Joint Board.	Proportion of Contribution to Expenses.
The County Borough of Cork - - - -	12	60 per cent.
The Rural District of Cork - - - -	3	15 "
The Rural District of Middleton - - -	2	10 "
The Urban District of Queenstown - -	2	10 "
The Rural District of Kinsale - - - -	1	5 "

Given under our seal of office this twenty-seventh day of April
one thousand nine hundred and three.

(L.S.)

(Signed) H. A. ROBINSON.

[3 EDW. 7.] *Local Government Board (Ireland)* [Ch. cxl.]
Provisional Orders Confirmation (No. 5) Act, 1903.

PORTADOWN AND BANBRIDGE JOINT WATERWORKS BOARD. A.D. 1903.

Provisional Order to enable the Portadown and Banbridge Joint Waterworks Board to put in force the Compulsory Clauses of the Lands Clauses Acts. *Portadown and Banbridge.*

WHEREAS by the Portadown and Banbridge Joint Waterworks Board Order 1902 (in this Order referred to as "the Order of 1902") confirmed by the Local Government Board (Ireland) Provisional Orders Confirmation (No. 3) Act 1902 the urban districts of Portadown and Banbridge were formed into a united district for the purpose of providing a supply of water for the said districts :

And whereas the Portadown and Banbridge Joint Waterworks Board (in this Order referred to as "the joint board") are the governing body of the said united district :

And whereas the joint board require to purchase and take the lands described in the schedule hereto for the purpose of providing a supply of water for the urban districts of Portadown and Banbridge :

Now therefore We the Local Government Board for Ireland (in this Order referred to as the Local Government Board) in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely :—

1. The joint board shall be empowered to put in force with reference to the lands and premises described in the schedule hereto and for the purpose aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedule hereto.

3. If the local authority for the time being of the town of Newcastle in the county of Down shall at any time after the intended works for the purpose of providing a supply of water for the urban districts of Portadown and Banbridge have been completed give notice in writing under the seal of such local authority to the joint board that the said local authority require a supply of water in bulk for domestic purposes for the town of Newcastle and shall at their own expense execute and carry out all works necessary to enable them to take such supply then the joint board shall supply them with such reasonable quantity of water on such terms as to quantity payment or otherwise as may be agreed on between the said joint board and the said local authority or as failing agreement shall be determined by an engineer or other fit person to be appointed as arbitrator on the application of either party by the Local Government Board and the decision of such arbitrator shall be final and binding on both parties and the costs of the arbitration

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Provisional Orders Confirmation (No. 5) Act. 1903.

A.D. 1903. shall be borne and paid as he shall direct and the provisions of the Public Health (Ireland) Act 1878 relating to arbitration as amended by the Public Health (Ireland) Act 1896 shall so far as applicable apply to such arbitration.

—
*Portadown and
Banbridge.*

4. The costs and expenses of the joint board and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the joint board and Article 22 of the Order of 1902 shall apply thereto.

5. This Order may be cited as the Portadown and Banbridge Water-works Order 1903.

S C H E D U L E.

Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
COUNTY OF ARMAGH.				
Parish of SEAGOE.				
1	Field part of the townland of Killycomain containing 3a. 1r. 4p.	Henry Francis Greer.	Frederick White.	Frederick W. White.
COUNTY OF DOWN.				
Parish of TULLYLISH.				
1	Field and marsh part of the townland of Kernan Lower containing 35p.	The Earl of Clanwilliam.	- - -	James Woods.
Parish of AGHADERG.				
1	Part of the townland of Ballyvarley as follows— Field and marsh containing 1r. 12p.	Alexander J. R. Stewart.	- - -	Charles Henry.
3	Field containing 13p. - -	Ditto	- Geo. W. Bowen	John McGrath.
4	Old public road containing 3p.	Ditto	- Ditto - -	Thomas Neill and John McGrath.
5	Field containing 1p. - -	Ditto	- Ditto - -	Mary Meehan.
6	Field containing 25p. - -	Ditto	- Ditto - -	Thomas Neill.
7	Field containing 17p. - -	Ditto	- Ditto - -	Eugene Maguire.
8	Field containing 15p. - -	Ditto	- Ditto - -	Ditto.
1	Field part of the townland of Coolnaeran containing 18p. Part of the townland of Drumnahare as follows :—	John J. White	- - -	Samuel Brown.
2	Field containing 22½p.	Marquis of Downshire.	- - -	James Ginniff.
3	Farm road containing ½p.	Ditto	- - -	Ditto.
4	Field containing 22p. - -	Ditto	- - -	Ditto.
6	Field containing 1r.	Ditto	- - -	Ditto.

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Provisional Orders Confirmation (No. 5) Act, 1903.

					A.D. 1903.
Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.	<i>Portadown and Banbridge.</i>
7	Field containing 1a. 0r. 4p. -	Marquis of Downshire.	- - -	Hugh Harvey.	
8	Field containing 36p. -	Ditto	- - -	Ditto.	
10	Field containing 17p. -	Ditto	- - -	Mary Anne Hutchinson or Joseph Bingham.	
11	Field containing 1r. 2p. -	Ditto	- - -	Ditto.	
12	Field containing 15p. -	Ditto	- - -	Hugh Harvey.	
1	Field part of the townland of Derrydrummuck containing 18p.	Captain J. P. Meade.	- - -	Andrew Marshall.	
Parish of DRUMBALLYRONEY.					
1	Field part of the townland of Edenagarry containing 37p.	Colonel R. G. Sharrman Crawford.	A. J. McClelland and the Irish Land Commission.	Joseph and Thomas McCrum.	
2	Field part of the townland of Edenagarry containing 2r. 36p.	Ditto	Irish Land Commission.	Joseph Frazer.	
1	Field part of the townland of Ballynagarna containing 11p.	Captain J. P. Meade.	- - -	Wm. John Herron.	
1	Field part of the townland of Lissize containing 11p.	Ditto	- - -	John Hawthorne.	
2	Field part of the townland of Lissize containing 17p.	Ditto	- - -	Andrew Kirk.	
1	Field part of the townland of Rosseonor containing 4p.	Ditto	- - -	Mary McAleery.	
Parish of CLONDUFF.					
Part of the townland of Drumnashamph as follows:—					
2	Field containing 14p. - -	Marquis of Downshire.	- - -	James Shilliday.	
3	Half bed and soil of river containing 8p.	Ditto	- - -	Ditto.	
Part of the townland of Ballycoshone Upper as follows:—					
1	Half bed and soil of river containing 6p.	Ditto	- - -	Samuel Lyons.	
2	River bank containing 2p. -	Ditto	- - -	Ditto.	
3	Field containing 11p. - -	Ditto	- - -	Ditto.	
4	Field containing 4p. - -	Ditto	- - -	Andrew Jennings.	
1	Field part of the townland of Lenish containing 4p.	Ditto	- - -	Patrick M'Avoy.	
Parish of KILCOO.					
Part of the townland of Fofannyreagh as follows:—					
1	Mountain pasture containing 67a. 0r. 6p.	The Earl of Roden.	- - -	—	
2	Mountain pasture containing 8a. 0r. 10p.	Ditto	- - -	Felix Darby.	
3	Mountain pasture containing 96a. 3r. 0p.	Ditto	- - -	—	
4	Mountain pasture containing 14a. 3r. 31p.	Ditto	- - -	—	

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A.D. 1903.					
<i>Portadown and Banbridge.</i>	Nos. on deposited Plans.	Description of Lands.	Owners or reputed Owners.	Lessees or reputed Lessees.	Occupiers.
	5	Margin of river 2a. 3r. 1p. -	The Earl of Roden.	- - -	—
	6	Half bed and soil of river containing 3r. 38p.	Ditto	- - -	The Earl of Roden.
	7	Public road containing 2a. 3r. 0p.	Ditto	- - -	The County Council of the County Down and the Rural District Council of Kilkeel.
		Part of the townland of Fofanybane as follows :—			
	1	Mountain pasture containing 39a. 1r. 13p.	Ditto	- - -	—
	2	Public road containing 1a. 0r. 38p.	Ditto	- - -	The County Council of the County Down and the Rural District Council of Kilkeel.
	3	Mountain pasture containing 185a. 1r. 13p.	Ditto	- - -	—
	4	Mountain pasture containing 9a. 1r. 20p.	Ditto	- - -	—
	5	Half bed and soil of river containing 31p.	Ditto	- - -	The Earl of Roden.
		Part of the townland of Moyad as follows :—			
	1	Mountain pasture containing 223a. 1r. 21p.	The Earl of Annesley.	- - -	—
	2	Half bed and soil of river and townland boundary containing 2r. 15p.	Ditto	- - -	The Earl of Annesley.
	3	Mountain pasture containing 2a. 32p.	Ditto	- - -	Sarah and Elizabeth McKnight.
	4	Half bed and soil of river and townland boundary containing 1r. 30p.	Ditto	- - -	The Earl of Annesley
	5	Bed and soil of river containing 1r. 19p.	Ditto	- - -	Ditto.
		Part of the townland of Cock mountain common as follows :—			
	1	Mountain pasture containing 283a. 1r. 28p.	Ditto	- - -	—
	2	Half bed and soil of river containing 2r. 14p.	Ditto	- - -	The Earl of Annesley.
	3	Half bed and soil of river containing 1r. 30p.	Ditto	- - -	Ditto.

Given under our seal of office this twenty-fourth day of April one thousand nine hundred and three.

(L.S.)

(Signed)

H. A. ROBINSON.
Wm. L. MICKS.

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